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IN THE FOURTH JUDICIAL DISTRICT COURT, PROVO DEPARTMENT
IN AND FOR THE COUNTY OF UTAH, STATE OF UTAH

STATE OF UTAH, Plaintiff, vs. TYLER JAMES ROBINSON, Defendant.	REPLY IN SUPPORT OF MOTION TO STRIKE RESPONSE TO DEFENDANT'S MOTION TO APPEAR AT ALL IN-PERSON PROCEEDINGS IN CIVILIAN CLOTHING AND WITHOUT RESTRAINTS Case No. 251403576 Honorable Tony F. Graf, Jr.
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Defendant, Tyler James Robinson, by and through undersigned counsel hereby files this reply in support of his *Motion to Strike Response to Defendant's Motion to Appear at All In-Person Proceedings in Civilian Clothing and Without Restraints*. Mr. Robinson maintains that the Sheriff's pleading is inappropriate and inconsistent with the controlling order from this Court, which ordered the State of Utah to respond and did not invite briefing from the Sheriff.

DISCUSSION

The State makes several interrelated arguments in opposition to the motion to strike, including arguing that the Sheriff has standing to join it in a pleading (that also makes affirmative requests for relief) and that filing a joint pleading is essentially more convenient. These arguments are unavailing.

First, the State cites to cases discussing victim standing in criminal cases likewise cited by Mr. Robinson in his motion. *Opposition*, at 1-3. The Sheriff's interest in this case, unlike that of a victim's, is not supported by constitutional and statutory rights and this is key. For example, in *F.L. v. Court of Appeals*, the Utah Supreme Court found that a victim had standing to contest the disclosure of their own privileged records under Utah Rule of Evidence 506 *and* "under the reasoning of *State v. Brown*." 2022 UT 32, ¶ 36, 515 P.3d 421. The reasoning in *State v. Brown* relied heavily on "[t]he right of crime victims to be heard in criminal cases" that is found in Utah Constitution, article I, § 28, and by the applicable statute allowing victims to be heard during particular hearings. 2014 UT 48, ¶ 13, 342 P.3d 239. The Utah Rules of Evidence alone did not provide the victim standing; standing was afforded constitutionally and statutorily.

The statute provided by the State, Utah Code § 17-22-2(1)(c) also does not afford a Sheriff standing to file a pleading in a criminal case. This provision requires Utah sheriff's generally to provide court security and refers to administrative rules. This concerns an *imposed* duty on sheriff, not any rights *afforded* to the Utah sheriffs. And, as discussed further below, Mr. Robinson has never argued that the Sheriff should not be permitted to provide information to the Court and in fact, specifically requested that this occur through the appropriate means.

Overall, the State still has not provided any constitutional provision or statute that affords the Sheriff standing to file a pleading in a criminal case. The Sheriff is not a party and should not be considered as a party by the Court.

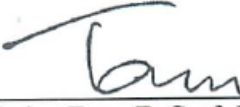
Second, the State claims that it “makes no difference” that the Court’s docketed and duly noticed *Interim Order* from October 14, 2025, does not order or invite the Sheriff to respond. *See* Doc 96; Doc 99 (*Notification for Interim Order*). The argument suggests that the parties should ignore that the October 13, 2025 order was never docketed and noticed, and was promptly replaced with a docketed and noticed order. In response, Mr. Robinson notes only that the Court’s controlling order speaks for itself:

2. The State must file its response by noon on October 20, 2025.
3. Mr. Robinson will have until the end of the day on October 22, 2025, to file a reply.
4. The briefing must address Mr. Robinson’s request to appear in civilian clothing and without physical restraints as well as Mr. Robinson’s interim requests for an order compelling documents from the Utah County Sheriff, for an order allowing him temporary relief, and for an order allowing a closed hearing.

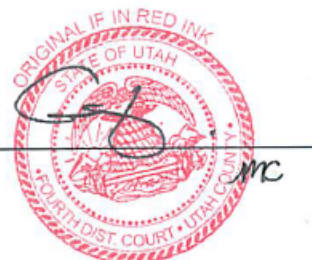
This is the order of the court.

Dated this 14th day of October, 2025.

BY THE COURT:



Judge Tony F. Graf, Jr.
District Court Judge



Third, the State is correct that Mr. Robinson was required to provide the Order to the Sheriff. *See* Doc 96. The State questions the utility of this provision if the Sheriff’s Office were

not then invited to respond. It stands to reason that this Court, like the parties, determined that it is not (and should not) be in a position to assume or argue and find standing on behalf of the Sheriff. However, that is precisely what has occurred here, with one of the prosecutors drafting and filing the opposition to the *Motion to Strike* on behalf of the Sheriff. Any guise that the prosecutor's office is and has been representing the people of the State of Utah is obliterated by the fact that the State is now making a standing argument on behalf of the Sheriff. *See Opposition* (signed by prosecutor Christopher Ballard).

Fourth, the State also argues, in a footnote, that the defense observation that the legal positions of the Sheriff and the State may be different and those differences may be conveyed to the Court is "inconsistent." *Opposition*, at 4 n.1. This is incorrect.

Defendant has never claimed that this Court may not receive information from the Sheriff's Office regarding Defendant's motion. In fact, Defendant *specifically requested* that this Court issue an order for the Sheriff's Office to provide information and for this Court to hold a closed evidentiary hearing so that the requested information from the Sheriff, as a non-party, can be appropriately provided to this Court. There is nothing inconsistent in or "illogical" about Mr. Robinson's argument that the Sheriff, a non-party, should not be joint filing pleadings with the State, a party.

Indeed, court orders, subpoenas, and evidentiary hearing are generally the means by which the parties may request information from non-parties and present that information to district courts. *See, e.g.*, Utah R. Civ. P. 45; Utah R. Crim. P. 14. In responding to such requests, third-parties are afforded the opportunity to assert rights and object as allowed by statute or rule. This does not mean that these entities or individuals become parties to a criminal case that may request affirmative relief from the court. Allowing the Sheriff standing to oppose a pleading and

request orders from the Court governing the behavior of the Court and the parties sets a dangerous precedent in this case (and for others) that should not be countenanced. Any governmental entity with any interest in a criminal proceeding would be allowed to file pleadings. This is an untenable result.

Lastly, the issues before the Court are whether the Court should: (1) order the Sheriff's Office to provide information in order to conduct the individualized assessment required; (2) hold an evidentiary hearing on the motion; and (3) while the underlying motion is pending, allow Mr. Robinson to appear in civilian clothing and without visible restraints at in person hearings such as the one that is presently scheduled for October 30, 2025, in light of the overwhelming constitutional concerns raised in the motion. None of these issues require an uninvited responsive pleading from a non-party—the Sheriff. To the extent the State desired the Sheriff's position to be considered at this stage of proceedings, the State could have properly provided affidavits or other admissible evidence for this Court's consideration.

Given that the State could have provided this information in an admissible form, Mr. Robinson acknowledges that this may seem like a semantic argument—it is not. A court's determination of standing is critical to its gatekeeping role and to the preservation of the separation of powers. *See, e.g., Utah Chapter of Sierra Club v. Utah Air Quality Bd.*, 2006 UT 74, ¶ 12, 148 P.3d 960 (“Standing is a concept ‘rooted in the historical and constitutional role of the judiciary’ as one of the three and separate equal branches of government.”). In addition, the State's continued efforts to muddy the waters by arguing on behalf of the Sheriff solidifies the conclusion, at least for Mr. Robinson and his counsel, that the State is apparently unable to separate itself from the interests of a different government agency. Allowing two agencies—

two parts of the executive branch—each apparently adversarial to Mr. Robinson to join in pleadings together against him threatens very basic understandings of fundamental fairness and due process.

Thus, where the Utah County Attorney’s Office (“UCAO”) has not sought to distinguish its own responses from that of the Sheriff’s Office, the pleading should be stricken in its entirety.

CONCLUSION

Where the Sheriff’s Office has not provided any authority affording it standing to file a pleading in a criminal case, and where UCAO has made no effort to distinguish its own position from that of the Sheriff’s Office, the Response should be stricken.

RESPECTFULLY SUBMITTED this 23rd day of October, 2025.

/s/ Kathryn N. Nester
Kathryn N. Nester

/s/ Michael N. Burt
Michael N. Burt

/s/ Richard G. Novak
Richard G. Novak

/s/ Staci Visser
Staci Visser
Attorneys for Defendant, Tyler James Robinson

CERTIFICATE OF SERVICE

This is to certify that a true and correct copy of the foregoing was served via the Court's electronic filing system on the 23rd day of October, 2025, which served all attorneys of record.

/s/ Kathryn N. Nester
Kathryn N. Nester